

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
MICHELLE CLARKE,

Plaintiff,

Index No.: 520742/2019

- against -

ANDRES TORIBIO,

Defendants.

**AMENDED VERIFIED
COMPLAINT**

-----X

Plaintiff, MICHELLE CLARKE, by her attorney, MASAI I. LORD Esq., complaining of the Defendants, respectfully alleges the following:

PRELIMINARY STATEMENT

1. Plaintiff MICHELLE CLARKE brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.

3. That at all times hereinafter mentioned, the defendants ANDRES TORIBIO was an employee of the New York City Police Department, acting in their capacity as a police officers, and under color of law.

4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.

5. That all conditions and requirements precedent to the commencement of this action have been complied with.

6. That by reason of the foregoing, this plaintiff has been damaged in an amount which

exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

7. On August 18, 2018, Michelle Clarke proceeded to a park near Rochester and Carroll Street in Brooklyn, New York. She was on her way to the park because she had been informed that there was an argument between her son and his baby mother and that the police had been called.

8. Mrs. Clarke arrived at the park and soon after the police arrived. When the police arrived, Mrs. Clarke attempted to talk to the police officers about what was taking place.

9. Defendant Officer Toribio told Ms. Clarke to shut up. After Ms. Clarke was told to shut up she asked for Defendant Officer Toribio's name and badge number.

10. Defendant Officer Toribio shoved his chest into her face and pushed her into the RMP.

11. Then, without reason or justification, he placed Mrs. Clarke under arrest.

12. This action took place in front of her grandson and family, causing embarrassment, humiliation and an incredible amount of emotional distress

13. Mrs. Clarke was taken to the 77th Precinct, where she was given a summons.

14. Plaintiff was incarcerated for over an hour before she was released from the precinct.

15. Plaintiff received a summons for P.L. § 240.20. The summons was dismissed on November 2, 2018.

16. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were

due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

17. These charges against plaintiff were based entirely on the false allegations and fabrications by DEFENDANT Toribio.

18. Plaintiff was acting lawfully when he was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

19. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

20. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

21. As a result of the defendants' conduct, plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C § 1983**

22. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

23. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

24. As a result of the aforesaid conduct by DEFENDANT, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANT and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

25. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

26. As a result of DEFENDANT'S impermissible conduct, Plaintiff demand judgment against DEFENDANT in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANT and other unidentified officers of the NYPD present on the scene without probable cause.

29. DEFENDANT commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

30. DEFENDANT commenced this criminal action out of malice.

31. The criminal action against Plaintiff has terminated in her favor.

32. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

33. That Plaintiff was conscious of the confinement.

34. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

35. The acts and conduct of the DEFENDANT was the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

36. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

37. As a result of DEFENDANT'S impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

DAMAGES

38. As a direct and proximate cause of DEFENDANT'S actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

39. This action seeks damages from on or prior to August 18, 2018 through the present.

40. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

41. Such acts and omissions of DEFENDANT caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANT at the time of the acts and omissions and which continue to date and will continue into the future: pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

42. Such acts and omissions of DEFENDANT entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
July 14, 2020

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
MICHELLE CLARKE
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff MICHELLE CLARKE. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
July 14, 2020



MASAI I. LORD
Counsel for Plaintiff